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glossed with legal concepts.” A, [2014] A. C., at ¶54. The Court of Justice of the European Union, the Supreme Court of Canada, and the High Court of Australia agree. See *OL*, 2017 E. C. R. No. C-111/17, ¶42 (the habitual residence of a child “must be established . . . taking account of all the circumstances of fact specific to each individual case”); *Balev*, [2018] 1 S. C. R., at 421, 423–430, ¶¶43, 48–71, 424 D. L. R. (4th), at 410–417, ¶¶43, 48–71 (adopting an approach to habitual residence under which “[t]he judge considers all relevant links and circumstances”); *LK v. Director-General, Dept. of Community Servs.*, [2009] 237 C. L. R. 582, 596, ¶35 (Austl.) (“to seek to identify a set list of criteria that bear upon where a child is habitually resident . . . would deny the simple observation that the question of habitual residence will fall for decision in a very wide range of circumstances”). Intermediate appellate courts in Hong Kong and New Zealand have similarly stated what “habitual residence” imports. See *LCYP v. JEK*, [2015] 4 H. K. L. R. D. 798, 809–810, ¶7.7 (H. K.); *Punter v. Secretary for Justice*, [2007] 1 N. Z. L. R. 40, 71, ¶130 (N. Z.). Tellingly, Monasky has not identified a single treaty partner that has adopted her actual-agreement proposal. See Tr. of Oral Arg. 9.⁴

The bottom line: There are no categorical requirements for establishing a child’s habitual residence—least of all an

⁴Monasky disputes that foreign courts apply a totality-of-the-circumstances standard to *infants*, as opposed to older children. In this regard, she points out, the Court of Justice of the European Union instructs that, “where ‘the infant is in fact looked after by her mother,’ ‘it is necessary to assess the mother’s integration in her social and family environment’ in the relevant country.” Reply Brief 5–6 (quoting *Mercredi v. Chaffe*, 2010 E. C. R. I-14309, I-14379, ¶55). True, a caregiving parent’s ties to the country at issue are highly relevant. But the Court of Justice did not hold that the caregiver’s ties are the end of the inquiry. Rather, the deciding court must “tak[e] account of *all* the circumstances of fact specific to each individual case.” *Id.*, ¶56 (emphasis added) (also considering, among other factors, the infant’s physical presence and duration of time in the country).

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actual-agreement requirement for infants. Monasky’s proposed actual-agreement requirement is not only unsupported by the Convention’s text and inconsistent with the leeway and international harmony the Convention demands; her proposal would thwart the Convention’s “objects and purposes.” *Abbott*, 560 U. S., at 20. An actual-agreement requirement would enable a parent, by withholding agreement, unilaterally to block any finding of habitual residence for an infant. If adopted, the requirement would undermine the Convention’s aim to stop unilateral decisions to remove children across international borders. Moreover, when parents’ relations are acrimonious, as is often the case in controversies arising under the Convention, agreement can hardly be expected. In short, as the Court of Appeals observed below, “Monasky’s approach would create a presumption of no habitual residence for infants, leaving the population most vulnerable to abduction the least protected.” 907 F. 3d, at 410.

B

Monasky counters that an actual-agreement requirement is necessary to ensure “that an infant’s mere physical presence in a country has a sufficiently settled quality to be deemed ‘habitual.’” Brief for Petitioner 32. An infant’s “mere physical presence,” we agree, is not a dispositive indicator of an infant’s habitual residence. But a wide range of facts other than an actual agreement, including facts indicating that the parents have made their home in a particular place, can enable a trier to determine whether an infant’s residence in that place has the quality of being “habitual.”

Monasky also argues that a bright-line rule like her proposed actual-agreement requirement would promote prompt returns of abducted children and deter would-be abductors from “tak[ing] their chances” in the first place. *Id.*, at 35, 38. Adjudicating a winner-takes-all evidentiary dispute over whether an agreement existed, however, is scarcely more expeditious than providing courts with leeway to make

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“a quick impression gained on a panoramic view of the evidence.” *Beaumont & McEleavy* 103 (internal quotation marks omitted). When all the circumstances are in play, would-be abductors should find it more, not less, difficult to manipulate the reality on the ground, thus impeding them from forging “artificial jurisdictional links . . . with a view to obtaining custody of a child.” *Pérez-Vera* 428, ¶11.

Finally, Monasky and *amici curiae* raise a troublesome matter: An actual-agreement requirement, they say, is necessary to protect children born into domestic violence. Brief for Petitioner 42–44; Brief for Sanctuary for Families et al. as *Amici Curiae* 11–20. Domestic violence poses an “intractable” problem in Hague Convention cases involving caregiving parents fleeing with their children from abuse. Hale, *Taking Flight—Domestic Violence and Child Abduction*, 70 *Current Legal Prob.* 3, 11 (2017). We doubt, however, that imposing a categorical actual-agreement requirement is an appropriate solution, for it would leave many infants without a habitual residence, and therefore outside the Convention’s domain. See *supra*, at 80–81. Settling the forum for adjudication of a dispute over a child’s custody, of course, does not dispose of the merits of the controversy over custody. Domestic violence should be an issue fully explored in the custody adjudication upon the child’s return.

The Hague Convention, we add, has a mechanism for guarding children from the harms of domestic violence: Article 13(b). See Hale, 70 *Current Legal Prob.*, at 10–16 (on Hague Conference working group to develop a best-practices guide to the interpretation and application of Article 13(b) in cases involving domestic violence). Article 13(b), as noted *supra*, at 72, allows a court to refrain from ordering a child’s return to her habitual residence if “there is a grave risk that [the child’s] return would expose the child to physical or psychological harm or otherwise place the child in an intolerable situation.” Art. 13(b), Treaty Doc., at 10. Monasky raised below an Article 13(b) defense to Taglieri’s return petition.

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In response, the District Court credited Monasky’s “deeply troubl[ing]” allegations of her exposure to Taglieri’s physical abuse. App. to Pet. for Cert. 105a. But the District Court found “no evidence” that Taglieri ever abused A. M. T. or otherwise disregarded her well-being. *Id.*, at 103a, 105a. That court also followed Circuit precedent disallowing consideration of psychological harm A. M. T. might experience due to separation from her mother. *Id.*, at 102a. Monasky does not challenge those dispositions in this Court.

III

Turning to the second question presented: What is the appropriate standard of appellate review of an initial adjudicator’s habitual-residence determination? Neither the Convention nor ICARA prescribes modes of appellate review, other than the directive to act “expeditiously.” Art. 11, Treaty Doc., at 9; see Federal Judicial Center, J. Garbolino, *The 1980 Hague Convention on the Civil Aspects of International Child Abduction: A Guide for Judges* 162 (2d ed. 2015) (the Convention’s “emphasis on prompt disposition applies to appellate proceedings”).⁵

Absent a treaty or statutory prescription, the appropriate level of deference to a trial court’s habitual-residence determination depends on whether that determination resolves a question of law, a question of fact, or a mixed question of law and fact. Generally, questions of law are reviewed *de novo* and questions of fact, for clear error, while the appropriate standard of appellate review for a mixed question “depends . . . on whether answering it entails primarily legal or factual

⁵ Monasky contends that only *de novo* review can satisfy “the need for uniform international interpretation of the Convention.” 22 U. S. C. § 9001(b)(3)(B). See Brief for Petitioner 19–21. However, ICARA’s recognition of the need for harmonious international interpretation is hardly akin to the “clear statutory prescription” on the standard of appellate review that Congress has provided “[f]or some few trial court determinations.” *Pierce v. Underwood*, 487 U. S. 552, 558 (1988).

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work.” *U.S. Bank N. A. v. Village at Lakeridge, LLC*, 583 U. S. 387, 396 (2018).

A child’s habitual residence presents what U. S. law types a “mixed question” of law and fact—albeit barely so. *Id.*, at 395. The inquiry begins with a legal question: What is the appropriate standard for habitual residence? Once the trial court correctly identifies the governing totality-of-the-circumstances standard, however, what remains for the court to do in applying that standard, as we explained *supra*, at 76–80, is to answer a factual question: Was the child at home in the particular country at issue? The habitual-residence determination thus presents a task for factfinding courts, not appellate courts, and should be judged on appeal by a clear-error review standard deferential to the factfinding court.

In selecting standards of appellate review, the Court has also asked whether there is “a long history of appellate practice” indicating the appropriate standard, for arriving at the standard from first principles can prove “uncommonly difficult.” *Pierce v. Underwood*, 487 U. S. 552, 558 (1988). Although some Federal Courts of Appeals have reviewed habitual-residence determinations *de novo*, there has been no uniform, reasoned practice in this regard, nothing resembling “a historical tradition.” *Ibid.* See also *supra*, at 76 (noting a Circuit split). Moreover, when a mixed question has a factual foundation as evident as the habitual-residence inquiry here does, there is scant cause to default to historical practice.

Clear-error review has a particular virtue in Hague Convention cases. As a deferential standard of review, clear-error review speeds up appeals and thus serves the Convention’s premium on expedition. See Arts. 2, 11, Treaty Doc., at 7, 9. Notably, courts of our treaty partners review first-instance habitual-residence determinations deferentially. See, e. g., *Balev*, [2018] 1 S. C. R., at 419, ¶38, 424 D. L. R. (4th), at 408, ¶38; *Punter*, [2007] 1 N. Z. L. R., at 88, ¶204; *AR v. RN*, [2015] UKSC 35, ¶18.

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IV

Although agreeing with the manner in which the Court has resolved the two questions presented, the United States, as an *amicus curiae* supporting neither party, suggests remanding to the Court of Appeals rather than affirming that court’s judgment. Brief for United States as *Amicus Curiae* 28. Ordinarily, we might take that course, giving the lower courts an opportunity to apply the governing totality-of-the-circumstances standard in the first instance.

Under the circumstances of this case, however, we decline to disturb the judgment below. True, the lower courts viewed A. M. T.’s situation through the lens of her parents’ shared intentions. But, after a four-day bench trial, the District Court had before it all the facts relevant to the dispute. Asked at oral argument to identify any additional fact the District Court did not digest, counsel for the United States offered none. Tr. of Oral Arg. 38. Monasky and Taglieri agree that their dispute “requires no ‘further factual development,’ ” and neither party asks for a remand. Reply Brief 22 (quoting Brief for Respondent 54).

Monasky does urge the Court to reverse if it rests A. M. T.’s habitual residence on all relevant circumstances. She points to her “absence of settled ties to Italy” and the “unsettled and unstable conditions in which A. M. T. resided in Italy.” Reply Brief 19 (internal quotation marks and alteration omitted). The District Court considered the competing facts bearing on those assertions, however, including the fraught circumstances in which the parties’ marriage unraveled. That court nevertheless found that Monasky had sufficient ties to Italy such that “[a]rguably, [she] was a habitual resident of Italy.” App. to Pet. for Cert. 91a. And, despite the rocky state of the marriage, the District Court found beyond question that A. M. T. was born into “a marital home in Italy,” one that her parents established “with no definitive plan to return to the United States.” *Id.*, at 97a.

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Nothing in the record suggests that the District Court would appraise the facts differently on remand.

A remand would consume time when swift resolution is the Convention's objective. The instant return-order proceedings began a few months after A. M. T.'s birth. She is now five years old. The more than four-and-a-half-year duration of this litigation dwarfs the six-week target time for resolving a return-order petition. See Art. 11, Treaty Doc., at 9. Taglieri represents that custody of A. M. T. has so far been resolved only "on an interim basis," Brief for Respondent 56, n. 13, and that custody proceedings, including the matter of Monasky's parental rights, remain pending in Italy. Tr. of Oral Arg. 60–61. Given the exhaustive record before the District Court, the absence of any reason to anticipate that the District Court's judgment would change on a remand that neither party seeks, and the protraction of proceedings thus far, final judgment on A. M. T.'s return is in order.

* * *

For the reasons stated, the judgment of the Court of Appeals for the Sixth Circuit is

Affirmed.

JUSTICE THOMAS, concurring in part and concurring in the judgment.

The Court correctly concludes that an actual agreement between parents is not necessary to establish the habitual residence of an infant who is too young to acclimatize.* I also agree with the Court's conclusion that the habitual-

*The Court states that we "granted certiorari to clarify the standard for habitual residence," *ante*, at 76, and the opinion contains language that may be read to apply to older children, see, *e.g.*, *ante*, at 78. But the relevant question presented focuses exclusively on the habitual residence of "an infant [who] is too young to acclimate to her surroundings." Pet. for Cert. i. I would confine our analysis to that distinct question, which is the only one briefed by the parties.

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residence inquiry is intensely fact driven, requiring courts to take account of the unique circumstances of each case. I write separately, however, because I would decide this case principally on the plain meaning of the treaty's text.

I

This case requires us to interpret the Hague Convention on the Civil Aspects of International Child Abduction, Oct. 25, 1980, T. I. A. S. No. 11670, S. Treaty Doc. No. 99–11, as implemented by the International Child Abduction Remedies Act (ICARA), as amended, 22 U. S. C. § 9001 *et seq.* Article 3 of the Convention provides that the “removal or the retention of a child is to be considered wrongful” when “it is in breach of rights of custody attributed to a person . . . under the law of the State in which the child was habitually resident immediately before the removal or retention” and “at the time of removal or retention those rights were actually exercised.” S. Treaty Doc. No. 99–11, at 7. Under ICARA, a parent may petition a federal or state court to return an abducted child to the child's country of habitual residence. § 9003(b). ICARA does not define habitual residence; it merely states that the petitioning parent must “establish by a preponderance of the evidence . . . that the child has been wrongfully removed or retained within the meaning of the Convention.” § 9003(e)(1)(A). The Convention also does not define the phrase.

“The interpretation of a treaty, like the interpretation of a statute, begins with its text.” *Abbott v. Abbott*, 560 U. S. 1, 10 (2010) (quoting *Medellín v. Texas*, 552 U. S. 491, 506 (2008)). The Court recognizes this fact, but it concludes that the text only “suggests” that habitual residence is a fact-driven inquiry, and ultimately relies on atextual sources to “confir[m] what the Convention's text suggests.” *Ante*, at 77. In my view, the ordinary meaning of the relevant language at the time of the treaty's enactment provides strong evidence that the habitual-

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residence inquiry is inherently fact driven. See *Schindler Elevator Corp. v. United States ex rel. Kirk*, 563 U.S. 401, 407 (2011).

In 1980, as today, “habitual” referred to something that was “[c]ustomary” or “usual.” Black’s Law Dictionary 640 (5th ed. 1979); see also 6 Oxford English Dictionary 996 (2d ed. 1989) (“existing as a settled practice or condition; constantly repeated or continued; customary”); Webster’s Third New International Dictionary 1017 (1976) (similar). And “residence” referred to a “[p]ersonal presence at some place of abode,” Black’s Law Dictionary, at 1176, “one’s usual dwelling-place,” 13 Oxford English Dictionary, at 707, or “the act or fact of abiding or dwelling in a place for some time,” Webster’s Third New International Dictionary, at 1931; see also *ibid.* (“a temporary or permanent dwelling place, abode, or habitation”).

These definitions demonstrate that the concept of habitual residence for a child too young to acclimatize cannot be reduced to a neat set of necessary and sufficient conditions. Answering the question of what is customary or usual, for instance, requires judges to consider a host of facts, such as the presence or absence of bank accounts and driver’s licenses, the length and type of employment, and the strength and duration of other community ties. Determining whether there is a residence involves the consideration of factors such as the presence or absence of a permanent home, the duration in the country at issue, and, in some cases, an actual agreement between the parents to reside in a particular place. Accordingly, the ordinary meaning of the phrase “habitual residence” provides strong support for the conclusion that an objective agreement between the child’s parents is not required. This plain meaning should serve as the primary guide for our interpretation. See *Water Splash, Inc. v. Menon*, 581 U.S. 271, 276 (2017); *Olympic Airways v. Husain*, 540 U.S. 644, 649 (2004).

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II

This case exemplifies the wisdom of firmly anchoring our discussion in the text before turning to the decisions of sister signatories—especially when those decisions are not contemporaneous with the treaty’s passage. Here, the Court finds it meaningful that foreign courts have interpreted the phrase “habitual residence” as a fact-driven inquiry. *Ante*, at 79–80. Though a “‘clear trend’” has certainly emerged in foreign courts, *ante*, at 79, this consensus appears to have developed only within the past decade.

Lady Hale of the Supreme Court of the United Kingdom noted as much in the 2013 decision cited by the Court. As she explained, for many years “the English courts [had] been tempted to overlay the factual concept of habitual residence with legal constructs,” creating legal rules that dictated a child’s habitual residence. *A v. A*, [2014] A. C. ¶39 (2013) (U. K.); see also *id.*, ¶37. According to one commentator writing in 2001, though “academics and judges” had stressed “that the term should not be treated as a term of art and should not be complicated by technical legal requirements similar to those applicable to the concept of domicile,” “in some cases these statements seem[ed] to have been pure lip-service, since many courts [were] unable to resist the temptation to ‘legalise’ the concept.” Schuz, *Habitual Residence of Children Under the Hague Child Abduction Convention—Theory and Practice*, 13 *Child & Family L. Q.* 1, 4 (2001). Thus, until recently, “[t]he approach of many [foreign] courts [had] been to focus exclusively on the purpose of the parents in relocating,” an inquiry that speaks to the legal concept of domicile. Schuz, *Policy Considerations in Determining the Habitual Residence of a Child and the Relevance of Context*, 11 *J. Transnat’l L. & Pol’y* 101, 103 (2001) (footnote omitted).

It seems, then, that it took approximately 30 years from the time of the Convention’s enactment in 1980 for foreign jurisdictions to coalesce around an interpretation of habitual

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residence. This relatively recent evolution brings into bold relief the risk of relying too heavily on the decisions of foreign courts in lieu of a fulsome textual analysis. Because the decisions are not contemporaneous with the treaty's passage, they do not necessarily provide the best evidence of the original understanding of the phrase. And reflexively looking to foreign courts raises the question whether this Court would have resolved this case differently had the issue been presented in 1990, 2000, or even 2010, before the clear trend emerged.

The Court attempts to sidestep this difficulty by pointing to a statement in ICARA's preamble that stresses "the need for uniform international interpretation of the Convention." 22 U.S.C. §9001(b)(3)(B); see *ante*, at 79. It should go without saying that if our independent assessment of habitual residence led to a conclusion that diverged from the emerging consensus, invocation of this prefatory language to force agreement at the expense of plain meaning would be unfounded. By relying too heavily on the judicial decisions of the treaty's other signatories, rather than on a more thorough textual analysis, we risk being persuaded to reach the popular answer, but perhaps not the correct one. In short, "we should not substitute the judgment of other courts for our own." *Abbott*, 560 U.S., at 43 (Stevens, J., dissenting); see also *Olympic Airways*, 540 U.S., at 655, n. 9.

To avoid these potential pitfalls, I would rely on the plain meaning of "habitual residence" to conclude that an actual agreement is not necessary. See *supra*, at 87–88. That conclusion is bolstered by the Convention's explanatory report. Interpretations from the courts of sister signatories, though recent, also support the conclusion because they align with the meaning of the text and our own independent judgment. Because the Court places insufficient weight on the treaty's text, I cannot join Part II of its opinion.

Opinion of ALITO, J.

JUSTICE ALITO, concurring in part and concurring in the judgment.

I agree with the Court on almost all the issues in this case. Specifically, I agree (1) that analysis of the question of “habitual residence” should be based on a range of factors and should be attentive to the particular facts of each case, (2) that a child may have a habitual residence in a country without a parental agreement to that effect, (3) that our interpretation of habitual residence should take into account the interpretations of other signatory nations, (4) that a district court’s decision on habitual residence is entitled to deference on appeal, and (5) that the judgment below should be affirmed. I also agree with JUSTICE THOMAS that we must independently interpret the meaning of “habitual residence.”

So what does it mean? The term “habitual” is used to refer to a cluster of related concepts. It can be used to refer to things done by habit, as well as things that are “constantly repeated or continued,” “usual,” or “accustomed.” 6 Oxford English Dictionary 996 (2d ed. 1989); see also Webster’s Third New International Dictionary 1017 (1976). If taken in isolation, each of these understandings might lead to a different analysis in applying the concept of “habitual residence” under the Convention. See Hague Convention on the Civil Aspects of International Child Abduction, Oct. 25, 1980, T. I. A. S. No. 11670, S. Treaty Doc. No. 99–11. But I think the Court accurately captures what the term means under the Convention when it says that a child’s habitual residence is the child’s “home.” *Ante*, at 77, 79, 84.

Of course the concept of “home” is also multifaceted. It can be used to signify the place where a person generally sleeps, eats, works, and engages in social and recreational activities, but it can also mean the place where a person feels most comfortable and the place to which the person has the strongest emotional ties. See 7 Oxford English Dictionary, at 322–323; Webster’s Third New International Dictionary,

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at 1082. As best I can determine, the concept of “habitual residence” under the Convention embraces all of these meanings to some degree. If forced to try to synthesize them, I would say it means the place where the child in fact has been living for an extended period—unless that place was never regarded as more than temporary or there is another place to which the child has a strong attachment. I think this is the core of what courts have made of the concept of “habitual residence,” and it appears to represent the best distillation of the various shades of meaning of the term taken in context.

So interpreted, “habitual residence” is not a pure question of fact, at least as we understand that concept in our legal system. But it does involve a heavily factual inquiry. For these reasons, I would say that the standard of review on appeal is abuse of discretion, not clear error. As a practical matter, the difference may be no more than minimal. The important point is that great deference should be afforded to the District Court’s determination.

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HERNANDEZ ET AL. *v.* MESACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 17–1678. Argued November 12, 2019—Decided February 25, 2020

Respondent, United States Border Patrol Agent Jesus Mesa, Jr., shot and killed Sergio Adrián Hernández Güereca, a 15-year-old Mexican national, in a tragic and disputed cross-border incident. Mesa was standing on U. S. soil when he fired the bullets that struck and killed Hernández, who was on Mexican soil, after having just run back across the border following entry onto U. S. territory. Agent Mesa contends that Hernández was part of an illegal border crossing attempt, while petitioners, Hernández’s parents, claim he was playing a game with his friends that involved running back and forth across the culvert separating El Paso, Texas, from Ciudad Juárez, Mexico. The shooting drew international attention, and the Department of Justice investigated, concluded that Agent Mesa had not violated Customs and Border Patrol policy or training, and declined to bring charges against him. The United States also denied Mexico’s request for Agent Mesa to be extradited to face criminal charges in Mexico.

Petitioners sued for damages in U. S. District Court under *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388, alleging that Mesa violated Hernández’s Fourth and Fifth Amendment rights. The District Court dismissed their claims, and the United States Court of Appeals for the Fifth Circuit affirmed. After this Court vacated that decision and remanded for further consideration in light of *Ziglar v. Abbasi*, 582 U. S. 120, the Fifth Circuit again affirmed, refusing to recognize a *Bivens* claim for a cross-border shooting.

Held: *Bivens*’ holding does not extend to claims based on a cross-border shooting. Pp. 99–114.

(a) In *Bivens*, the Court implied a Fourth Amendment claim for damages even though no federal statute authorized such a claim. The Court later extended *Bivens*’ reach to cover claims under the Fifth and Eighth Amendments. See *Davis v. Passman*, 442 U. S. 228; *Carlson v. Green*, 446 U. S. 14. But *Bivens*’ expansion has since become “a ‘disfavored’ judicial activity,” *Abbasi*, *supra*, at 135, and the Court has generally expressed doubt about its authority to recognize causes of action not expressly created by Congress, see, e. g., *Jesner v. Arab Bank, PLC*, 584 U. S. 241, 264–265. When considering whether to extend *Bivens*, the Court uses a two-step inquiry that first asks whether the request in-

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volves a claim that arises in a “new context” or involves a “new category of defendants.” *Correctional Services Corp. v. Malesko*, 534 U. S. 61, 68. If so, the Court then asks whether there are any “special factors [that] counse[l] hesitation” about granting the extension. *Abbasi*, *supra*, at 136. Pp. 99–102.

(b) Petitioners’ *Bivens* claims arise in a new context. Their claims are based on the same constitutional provisions as claims in cases in which damages remedies were previously recognized, but the context—a cross-border shooting—is significantly “different . . . from previous *Bivens* cases.” *Abbasi*, 582 U. S., at 139. It involves a “risk of disruptive intrusion by the Judiciary into the functioning of other branches.” *Id.*, at 140. P. 103.

(c) Multiple, related factors counsel hesitation before extending *Bivens* remedies into this new context. Pp. 103–114.

(1) The expansion of a *Bivens* remedy that impinges on foreign relations—an arena “so exclusively entrusted to the political branches . . . as to be largely immune from judicial inquiry,” *Haig v. Agee*, 453 U. S. 280, 292—risks interfering with the Executive Branch’s “lead role in foreign policy,” *Medellín v. Texas*, 552 U. S. 491, 524. A cross-border shooting affects the interests of two countries and, as happened here, may lead to disagreement. It is not for this Court to arbitrate between the United States and Mexico, which both have legitimate and important interests at stake and have sought to reconcile those interests through diplomacy. Pp. 103–106.

(2) Another factor is the risk of undermining border security. The U. S. Customs and Border Protection Agency is responsible for preventing the illegal entry of dangerous persons and goods into the United States, and the conduct of their agents positioned at the border has a clear and strong connection to national security. This Court has not extended *Bivens* where doing so would interfere with the system of military discipline created by statute and regulation, see, *e. g.*, *Chappell v. Wallace*, 462 U. S. 296, and a similar consideration is applicable to the framework established by the political branches for addressing cases in which it is alleged that lethal force at the border was unlawfully employed by a border agent. Pp. 107–109.

(3) Moreover, Congress has repeatedly declined to authorize the award of damages against federal officials for injury inflicted outside U. S. borders. For example, recovery under 42 U. S. C. § 1983 is available only to “citizen[s] of the United States or other person[s] within the jurisdiction thereof.” The Federal Tort Claims Act bars “[a]ny claim arising in a foreign country.” 28 U. S. C. § 2680(k). And the Torture Victim Protection Act of 1991, note following 28 U. S. C. § 1350, cannot be used by an alien to sue a United States officer. When Congress has

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provided compensation for injuries suffered by aliens outside the United States, it has done so by empowering Executive Branch officials to make payments under circumstances found to be appropriate. See, *e. g.*, Foreign Claims Act, 10 U. S. C. §2734. Congress’s decision not to allow suit in these contexts further indicates that the Judiciary should not create a cause of action that extends across U. S. borders either. Pp. 109–113.

(4) These factors can all be condensed to the concern for respecting the separation of powers. The most important question is whether Congress or the courts should create a damages remedy. Here the answer is Congress. Congress’s failure to act does not compel the Court to step into its shoes. Pp. 113–114.

885 F. 3d 811, affirmed.

ALITO, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a concurring opinion, in which GORSUCH, J., joined, *post*, p. 114. GINSBURG, J., filed a dissenting opinion, in which BREYER, SOTOMAYOR, and KAGAN, JJ., joined, *post*, p. 118.

Stephen I. Vladeck argued the cause for petitioners. With him on the briefs were *Leah M. Litman*, *Cristobal M. Galindo*, *Robert C. Hilliard*, *Marion M. Reilly*, *Steve D. Shadowen*, and *Matthew C. Weiner*.

Randolph J. Ortega argued the cause for respondent. With him on the brief were *Louis Elias Lopez, Jr.*, and *Gabriel Perez*.

Deputy Solicitor General Wall argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Assistant Attorney General Mooppan*, *Morgan L. Ratner*, *Mark B. Stern*, *Katherine Twomey Allen*, *Mary Hampton Mason*, and *Siegmund F. Fuchs*.*

*Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union et al. by *Cody Wofsy*, *Cecillia Wang*, *Lee Gelernt*, *Omar C. Jadwat*, *David D. Cole*, *Andre I. Segura*, and *Maria Martinez Sanchez*; for Amnesty International USA et al. by *Hope Metcalf* and *John W. Whitehead*; for Brady by *Sean A. Lev*, *Joshua Hafenbrack*, *Frederick Gaston Hall*, and *Jonathan E. Lowy*; for the Constitutional Accountability Center by *Elizabeth B. Wydra*, *Brianne J. Gorod*, and *David H. Gans*; for

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JUSTICE ALITO delivered the opinion of the Court.

We are asked in this case to extend *Bivens* v. *Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), and create a damages remedy for a cross-border shooting. As we have made clear in many prior cases, however, the Constitution’s separation of powers requires us to exercise caution before extending *Bivens* to a new “context,” and a claim based on a cross-border shooting arises in a context that is markedly new. Unlike any previously recognized *Bivens* claim, a cross-border shooting claim has foreign relations and national security implications. In addition, Congress has been notably hesitant to create claims based on allegedly tortious conduct abroad. Because of the distinctive characteristics of cross-border shooting claims, we refuse to extend *Bivens* into this new field.

I

The facts of this tragic case are set forth in our earlier opinion in this matter, *Hernández v. Mesa*, 582 U. S. 548 (2017) (*per curiam*). Sergio Adrián Hernández Güereca, a 15-year-old Mexican national, was with a group of friends in

Former Officials of U. S. Customs and Border Protection Agency by *Kelsi Brown Corkran* and *Thomas M. Bondy*; for the Government of the United Mexican States by *Donald Francis Donovan* and *Carl J. Micarelli*; for Immigrant and Civil Rights Organizations by *Matthew E. Price*, *Trina Realmuto*, *Mary A. Kenney*, and *Matt Adams*; for the Institute for Justice by *Robert Frommer* and *Darpana Sheth*; for the Tahirih Justice Center et al. by *Sharon Katz* and *Julie Goldscheid*; for Douglas Laycock et al. by *Joshua Matz*; for Alan Mygatt-Tauber by *Mr. Mygatt-Tauber, pro se*; for Gregory C. Sisk by *Ari J. Savitzky* and *David Sapir Lesser*; and for Carlos M. Vazquez et al. by *Hyland Hunt* and *Ruthanne M. Deutsch*.

Briefs of *amici curiae* urging affirmance were filed for APA Watch by *Lawrence J. Joseph*; and for the Criminal Justice Legal Foundation by *Kent S. Scheidegger* and *Kymberlee C. Stapleton*.

Briefs of *amici curiae* were filed for the Border Network for Human Rights et al. by *Arleigh P. Helfer III* and *Stephen A. Fogdall*; for Border Scholars by *Joshua S. Lipshutz* and *Ethan D. Dettmer*; and for the Council on American-Islamic Relations et al. by *Lena F. Masri* and *Justin Sadowsky*.

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a concrete culvert that separates El Paso, Texas, from Ciudad Juarez, Mexico. The border runs through the center of the culvert, which was designed to hold the waters of the Rio Grande River but is now largely dry. Border Patrol Agent Jesus Mesa, Jr., detained one of Hernández's friends who had run onto the United States' side of the culvert. After Hernández, who was also on the United States' side, ran back across the culvert onto Mexican soil, Agent Mesa fired two shots at Hernández; one struck and killed him on the other side of the border.

Petitioners and Agent Mesa disagree about what Hernández and his friends were doing at the time of shooting. According to petitioners, they were simply playing a game, running across the culvert, touching the fence on the U. S. side, and then running back across the border. According to Agent Mesa, Hernández and his friends were involved in an illegal border crossing attempt, and they pelted him with rocks.¹

The shooting quickly became an international incident, with the United States and Mexico disagreeing about how the matter should be handled. On the United States' side, the Department of Justice conducted an investigation. When it finished, the Department, while expressing regret over Hernández's death, concluded that Agent Mesa had not violated Customs and Border Patrol policy or training, and it declined to bring charges or take other action against him. Mexico was not and is not satisfied with the U. S. investigation. It requested that Agent Mesa be extradited to face criminal charges in a Mexican court, a request that the United States has denied.

Petitioners, Hernández's parents, were also dissatisfied and therefore brought suit for damages in the United States

¹See App. to Pet. for Cert. 198–199; Dept. of Justice, Federal Officials Close Investigation Into the Death of Sergio Hernandez-Guereca (Apr. 27, 2012), <https://www.justice.gov/opa/pr/federal-officials-close-investigation-death-sergio-hernandez-guereca> (hereinafter DOJ Press Release).

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District Court for the Western District of Texas. Among other claims, they sought recovery of damages under *Bivens*, alleging that Mesa violated Hernández’s Fourth and Fifth Amendment rights. The District Court granted Mesa’s motion to dismiss, and the Court of Appeals for the Fifth Circuit sitting en banc has twice affirmed this dismissal.

On the first occasion, the court held that Hernández was not entitled to Fourth Amendment protection because he was “a Mexican citizen who had no ‘significant voluntary connection’ to the United States” and “was on Mexican soil at the time he was shot.” *Hernandez v. United States*, 785 F. 3d 117, 119 (CA5 2015) (*per curiam*). It further concluded that Mesa was entitled to qualified immunity on petitioners’ Fifth Amendment claim. *Id.*, at 120.

After granting review, we vacated the Fifth Circuit’s decision and remanded the case, instructing the court “to consider how the reasoning and analysis” of *Ziglar v. Abbasi*, 582 U. S. 120 (2017), our most recent explication of *Bivens*, “[might] bear on this case.” *Hernández*, 582 U. S., at 553. We found it “appropriate for the Court of Appeals, rather than this Court, to address the *Bivens* question in the first instance.” *Ibid.* And with the *Bivens* issue unresolved, we thought it “imprudent” to resolve the “sensitive” question whether the Fourth Amendment applies to a cross-border shooting. 582 U. S., at 554. In addition, while rejecting the ground on which the Court of Appeals had held that Agent Mesa was entitled to qualified immunity, we declined to decide whether he was entitled to qualified immunity on a different ground or whether petitioners’ claim was cognizable under the Fifth Amendment. *Id.*, at 554–555.

On remand, the en banc Fifth Circuit evaluated petitioners’ case in light of *Abbasi* and refused to recognize a *Bivens* claim for a cross-border shooting. 885 F. 3d 811 (2018). The court reasoned that such an incident presents a “‘new context’” and that multiple factors—including the incident’s relationship to foreign affairs and national security, the ex-

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triterritorial aspect of the case, and Congress’s “repeated refusals” to create a damages remedy for injuries incurred on foreign soil—counseled against an extension of *Bivens*. 885 F. 3d, at 816–823.

We granted certiorari, 587 U. S. 1025 (2019), and now affirm.

II

In *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388, the Court broke new ground by holding that a person claiming to be the victim of an unlawful arrest and search could bring a Fourth Amendment claim for damages against the responsible agents even though no federal statute authorized such a claim. The Court subsequently extended *Bivens* to cover two additional constitutional claims: in *Davis v. Passman*, 442 U. S. 228 (1979), a former congressional staffer’s Fifth Amendment claim of dismissal based on sex, and in *Carlson v. Green*, 446 U. S. 14 (1980), a federal prisoner’s Eighth Amendment claim for failure to provide adequate medical treatment. After those decisions, however, the Court changed course.

Bivens, *Davis*, and *Carlson* were the products of an era when the Court routinely inferred “causes of action” that were “not explicit” in the text of the provision that was allegedly violated. *Abbasi*, 582 U. S., at 132. As *Abbasi* recounted:

“During this ‘*ancien regime*,’ . . . the Court assumed it to be a proper judicial function to ‘provide such remedies as are necessary to make effective’ a statute’s purpose Thus, as a routine matter with respect to statutes, the Court would imply causes of action not explicit in the statutory text itself.” *Ibid.* (quoting *Alexander v. Sandoval*, 532 U. S. 275, 287 (2001); *J. I. Case Co. v. Borak*, 377 U. S. 426, 433 (1964)).

Bivens extended this practice to claims based on the Constitution itself. 582 U. S., at 131–132; *Bivens*, 403 U. S., at 402 (Harlan, J., concurring in judgment) (Court can infer availabil-